

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
RICHLER MORETTE

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
580 East 21st Street, Apt. L1
Brooklyn, New York 112266

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
FRANCIS FORD, TAX REGISTRY #941774 OF
THE 1ST PRECINCT,

Defendants,

-----X

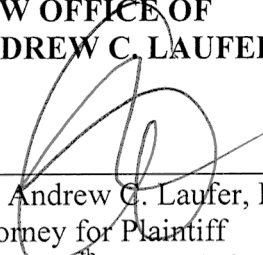
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
April 17, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774
OF THE 1ST PRECINCT
16 Ericsson Place
New York, New York 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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RICHLER MORETTE

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
FRANCIS FORD, TAX REGISTRY #941774 OF
THE 1ST PRECINCT,

Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendant, POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT, was and still is employed with the New York City POLICE DEPARTMENT.

5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That the CITY OF NEW YORK held an examination of the plaintiff pursuant to Municipal Law 50h on January 31, 2019.

7. That at all time herein mentioned, POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT, was acting within the scope and course of his employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT was acting in his individual and official capacity as an employee of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about January 1st, 2017, plaintiff, Richler Morette, was lawfully a passenger in a motor vehicle operated by, upon information and belief, Gedeon Gerderson at or about the southwest corner of Canal Street and Broadway, in the County, City, and State of New York.

11. At said time and place, the vehicle the plaintiff was a passenger in was car-jacked by a third individual with a gun.

12. This third individual compelled the driver, Mr. Gerderson, to drive away from the club which he did for approximately two blocks for fear of being shot.

13. At said time and place, Mr. Gerderson said to this individual he couldn't drive anymore or go through red lights for fear of killing someone with the vehicle while he was being chased by the defendants police car.

14. Mr. Gerderson then pulled the vehicle over whereby the gunman jumped out of the vehicle and ran.

15. Prior to leaving the vehicle, the gunman dropped his firearm in the back seat of Mr. Gederson's vehicle.

16. The defendants gave foot chase of the gunman but were unable to capture him.

17. Instead, after searching the Mr. Gerderson's vehicle, the defendants arrest him and the plaintiff without probable cause. The plaintiff denies ever being in possession of a firearm.

18. After being arrested, the plaintiff was taken to the 1st precinct.

19. Thereafter, he was taken to Manhattan Central Booking.

20. At arraignment, bail was set at \$25,000 which the plaintiff could not pay. The Court then lowered the bail to \$15,000 which the plaintiff could still not pay.

21. He was then sent to the Metropolitan Detention Center (MDC) where he was held for approximately 1 week.

22. Thereafter, the plaintiff was transferred to Rikers Island where he was held for another week.

23. At the plaintiff's next court appearance, all his bail conditions were dropped and he was released on his own recognizance.

24. The plaintiff continued to appear in Court for approximately 8-10 more appearances until all charges were dismissed in his favor and pursuant to Criminal Procedure Law 160.60 "The

Arrest and Prosecution shall be deemed a nullity and the accused shall be restored, in contemplation of the law, to the status occupied before the Arrest and Prosecution.”

25. The individual Defendant, POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person; including the use of excessive force during the arrest process (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process and malicious prosecution; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF’S RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON FALSE ARREST AND IMPRISONMENT

26. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

27. That on or about 1st of January, 2017, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

28. That on or about January 1st, 2017, Defendant POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT, jointly and severally in his capacity as a police officer, wrongfully stopped, handcuffed, and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

29. That on or about January 1st, 2017, POLICE OFFICER FRANCIS FORD, TAX REGISTRY #941774 OF THE 1ST PRECINCT, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty and then took him into custody to the 1st Precinct.

30. Plaintiff was held at the 1st Precinct, until he was taken to central booking.

31. That the aforesaid arrest, detention and imprisonment continued at the 1st Precinct in New York County, MDC, Rikers Island, and elsewhere.

32. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officer, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

33. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

34. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendant FORD deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

35. As a result of the aforementioned actions, Defendant FORD deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

36. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

37. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

38. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

39. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986.

SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE MALICIOUS
PROSECUTION OF PLAINTIFF

40. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

41. Upon information and belief, on or about January 1, 2017 and from that time until the dismissal of charges, which was favorable termination for the accused, Defendants including FORD deliberately and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of

the City of New York, New York County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

42. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.

43. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

44. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

45. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

46. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.

47. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.

48. Plaintiff has suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

49. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and New York State Law.

THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

50. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

51. All of the acts and omissions by the individual Defendant, FORD described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

52. Defendants CITY and NYPD by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

53. Defendants arrested, incarcerated, and prosecuted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest, prosecution, and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

54. At all times mentioned herein, said police officer and assistant district attorney were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

55. On or about January 1, 2017, Defendants did stop, seize, search, arrest, and prosecute the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.

56. The Plaintiff was falsely arrested, unlawfully imprisoned, and maliciously prosecuted without the Defendants' possessing probable cause to do so.

57. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from illegal search and seizure.
- b. Freedom from false arrest.
- c. Freedom from malicious prosecution.
- d. Freedom from the use of excessive force during the arrest process.
- e. Freedom from unlawful imprisonment.

58. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

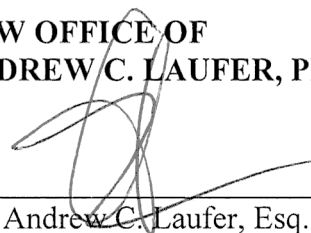
59. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, prosecution, leveling of charges, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest and prosecution should be based upon probable cause.

60. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
April 17, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

A handwritten signature in black ink, appearing to read 'Andrew C. Laufer', is written over a horizontal line.

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RICHLER MORETTE

VERIFICATION

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
FRANCIS FORD, TAX REGISTRY #941774 OF
THE 1ST PRECINCT,

Defendants,

-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
April 17, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
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RICHLER MORETTE,

Plaintiff,

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THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
FRANCIS FORD, TAX REGISTRY #941774 OF
THE 1st PRECINCT,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.
Dated,

Yours, etc.

Law Office of Andrew C. Laufer